

Court No. - 36

Case :- WRIT - C No. - 15892 of 2011

Petitioner :- Bhagwan Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Diwakar Tiwari

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Rajesh Chandra,J.

On prayer made by Shri Raj Shekhar Srivastava, holding brief for Shri Rajesh Tripathi, learned counsel for the respondent no.2, the case is directed to be put-up as fresh on 29.3.2011 so as to enable Shri Rajesh Tripathi to obtain instructions particularly in regard to the following:

(1) Whether any Provisional Assessment was made in respect of the petitioner ?

(2) Whether copy of the Provisional Assessment was sent to the petitioner, and if so, the mode of such Communication ?

(3) Whether the petitioner submitted any Objections against the Provisional Assessment ?

(4) Whether the Objections, if any, submitted by the petitioner were decided by the concerned authority, and if so, copy of such Order ?

(5) Whether the Order, if any, passed on the Objections of the petitioner against the Provisional Assessment was sent to the petitioner, and if so, mode of such Communication ?

(6) Whether any Final Assessment Order was issued in respect of the petitioner, and if so, copy of such Order ?

(7) Whether Final Assessment Order was communicated to the petitioner, and if so, the mode of such Communication ?

Order Date :- 16.3.2011

Ajeet

Court No. - 35

Case :- WRIT - C No. - 15892 of 2011

Petitioner :- Bhagwan Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Diwakar Tiwari

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Sunil Ambwani,J.

Hon'ble Kashi Nath Pandey,J.

Sri Rajesh Tripathi, learned counsel for the respondents prays for and is granted time upto Monday, to complete the instructions in respect of the queries made by the Court on 16.3.2011.

Put up on 4.4.2011.

Order Date :- 29.3.2011

nethra

Court No. - 36

Case :- WRIT - C No. - 15892 of 2011

Petitioner :- Bhagwan Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Diwakar Tiwari

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Rajesh Chandra,J.

As prayed, list this case on 13.4.2011.

The case will be listed amongst the cases listed at the top of the cause list of the said date.

Order Date :- 4.4.2011

safi

Court No. - 36

Case :- WRIT - C No. - 15892 of 2011

Petitioner :- Bhagwan Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Diwakar Tiwari

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Rajesh Chandra,J.

On oral prayer made by Shri Diwakar Tiwari, learned counsel for the petitioner, he is permitted to implead Collector, Hathras (Mahamaya Nagar) as party-respondent no.4.

Necessary impleadment will be done in the Writ Petition as well as in the Stay Application during the course of the day.

It is submitted by Shri Diwakar Tiwari, learned counsel for the petitioner that Recovery Certificate dated 1.10.2010 has been sent by the respondent no. 2 to the Collector, Hathras (Mahamaya Nagar) (respondent no.4) without complying with the mandatory requirements laid down in Clause 8.1 of the U.P. Electricity Supply Code, 2005.

By the Order dated 16.3.2011, Shri Rajesh Tripathi, learned counsel for the respondent nos.2 and 3 was given time to obtain instructions in the matter.

Shri Subhash Gosain, holding brief for Shri Rajesh Tripathi, learned counsel for the respondent nos. 2 and 3 is present, and he states that instructions have been received in the matter. As per the instructions, Provisional Assessment dated 31.1.2009 was done in the case of the petitioner.

However, he states that instructions are silent as regards the mode by which the Provisional Assessment was sent to the petitioner.

Shri Subhash Gosain further states that instructions are silent as to whether any Final Assessment Order was passed in respect of the petitioner. He further states that as no objections were received from the petitioner, the Provisional Assessment was treated to be Final Assessment, and the aforesaid Recovery Certificate was sent by the respondent no.2 to the Collector, Hathras (Mahamaya Nagar) (respondent no. 4).

In Rejoinder, Shri Diwakar Tiwari, learned counsel for the petitioner submits that no Provisional Assessment was ever received by the petitioner.

It is further submitted that in the absence of Final Assessment Order, the petitioner would be deprived of his right of filing Appeal under Section 127 of the Electricity Act, 2003.

Matter requires consideration.

Issue notice pending admission.

Notice on behalf of the respondent nos. 1 and 4 has been accepted by the learned Standing Counsel.

Notice on behalf of the respondent nos. 2 and 3 has been accepted by Shri Rajesh Tripathi.

Therefore, no notice need be sent to the respondents.

Counter Affidavit on behalf of the respondents

may be filed within three weeks.

Rejoinder Affidavit may be filed by the next date fixed in the matter.

List this case on 18th May, 2011.

Heard on the question of grant of interim relief.

Having regard to the facts and circumstances of the case and having considered the submissions made by the learned counsel for the parties, it is provided that till the next date of listing, recovery proceedings against the petitioner pursuant to the Recovery Certificate dated 1.10.2010 (Annexure 1 to the Writ Petition) will remain stayed provided within four weeks from today, the petitioner deposits with the respondent no. 2 an amount of Rs. 1 lac.

The deposit so made by the petitioner will be without prejudice to the rights and contentions of the parties involved in the present Writ Petition.

In the event of default on the part of the petitioner in making the deposit, as mentioned above, this order will stand automatically vacated.

Order Date :- 13.4.2011

Ajeet

Court No. - 21

Case :- WRIT - C No. - 15892 of 2011

Petitioner :- Bhagwan Singh

Respondent :- State of U.P. and Others

Counsel for Petitioner :- Diwakar Tiwari

Counsel for Respondent :- C.S.C., Rajesh Tripathi

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

None appears for the petitioner to press the petition even in revised call.

Writ petition is dismissed for want of prosecution.

The order has been passed in the presence of Sri Ashutosh Dwivedi, Advocate holding brief of Sri Baleshwar Chaturvedi, learned counsel for the respondent Corporation.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 21.3.2023

Jaswant